

ANDREWS v. ANDERSON, et al

23CV46644

DEFENDANTS' MOTION TO COMPEL PLAINTIFF TO ANSWER DISCOVERY AND FOR SANCTIONS

Plaintiff alleges breach of contract, fraud, and elder abuse related to construction work and three loans at 3441 Appaloosa Road in Angels Camp. Previously, the defendants moved for further answers to special and form interrogatories and requests for admission, which was partially granted. Defendants have filed the present motion contending plaintiff never complied with the Court's Order. Plaintiff's response includes counsel's declaration conceding the Order was not timely complied with but now full responses have been provided; defendants' reply acknowledges the belated responses but contends that form interrogatories 50.1 and 50.2 have yet to be answered. (The Court notes the reply was untimely per statute filed three court days before the hearing but notes that with plaintiff's late responses the late filing will be allowed and the reply was fully considered.)

Based on the totality of the declarations, the Court finds plaintiff has complied with discovery response obligations with the exception of form interrogatories 50.1 and 50.2.

Based on the foregoing, the Court **GRANTS** Defendants' Motion to Compel Answers to Discovery as to form interrogatories 50.1 and 50.2. Full verified answers, without objection, to these two interrogatories must be provided by 5:00 p.m. on April 26, 2024. **As to sanctions, the Court finds that** in light of the mostly complete discovery answers (albeit late even per the Court's Order) an evidence sanction is unwarranted; however, based on the declaration of plaintiff's counsel, **monetary sanctions are awarded to defendants and their counsel in the amount of \$900 to be paid personally by plaintiff's counsel Lawrence Niermeyer by 5:00 p.m. on April 19, 2024.** (The Court reduces defendants' counsel's hourly billing to \$300, the going rate in the local market, and awards 3 hours of attorney time as reasonable.)

The Clerk shall provide notice of these Rulings to the parties forthwith. Defendants are to submit a formal Order in compliance with Rule 3.1312 in conformity with these Rulings.

BROWN v. OLAN

22CF13738

PLAINTIFF'S MOTION TO ENFORCE STIPULATION AND ORDER

This is an action for Damages, Temporary Restraining Order, and Permanent Injunction (Trespass) against defendant. This matter was settled at a Mandatory Settlement Conference on March 20, 2023. Defendant agreed to remove the wood fence at his expense, and Plaintiff agreed to remove the perforated pipe at his expense and the wrought iron fence was to remain in place. Both parties were to allow all efforts for the other party to complete their tasks with no harassment. On May 3, 2023, the parties executed and filed a Stipulation and Order formalizing the agreement.

An enforceable settlement agreement under Code of Civil Procedure (CCP) §664.6 must either be entered into orally before a court or be in writing and signed by the parties. (See *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.) These alternative requirements aim to minimize misunderstandings. Direct participation by the litigants ensures that the settlement results from their mature reflection and deliberate assent. (See *Id.*; *Levy v. Superior Court* (1995) 10 Cal.4th 578, 585. fn. omitted.)

In this case, the parties announced their settlement terms and agreement in open court, resulting in a Minute Order that specified the terms of the settlement. The court directed plaintiff's counsel to prepare a formal agreement. Both parties then executed the written settlement terms, which the court signed, thereby adopting the terms of the settlement agreement and making them enforceable under CCP section 664.6.

The defendant committed to relocating a wooden fence that encroached on the plaintiff's property. The defendant participated in a "walkthrough" with the surveyor to verify the necessary fence relocation. However, the retaining wall and iron fence, which encroached on the plaintiff's land, were not mandated to be moved. The parties were instructed to remove drainage pipes causing water to drain onto each other's property. Instead of removing the encroaching wooden fence and drainpipes, the defendant extended the encroaching wooden fence alongside the iron fence.

Plaintiff's Motion to Enforce Stipulation and Judgment is **GRANTED**. Defendant Olan is ordered to comply with the Stipulation and Order by removing the pipes that drain onto Plaintiff's property and either removing the new fencing or moving it to the property line and removing the wrought iron fencing left on Plaintiff's property. Although CCP Section 664.6 provides for an award of reasonable attorney's fees associated with a motion to enforce, plaintiff's counsel failed to provide the requisite declaration detailing hourly rate and hours spent on the motion; based upon this shortcoming, the Request for Attorney's Fees is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.